

could not alter their status as part of an international organisation with jurisdiction conferred under the EPC. The boards of appeal are not and have never been treated as courts or tribunals of their host country.

In R. 1/10, the Enlarged Board held that not even a CJEU finding that the boards of appeal lacked the independence required of a judicial body adhering to the rule of law (see opinion of the Advocate-General of 2 July 2010 and CJEU opinion of 8 March 2011 in Case 1/09) would be binding on the boards. The European Patent Organisation was an autonomous subject of international law and inherently independent of the EU.

1.3.1 Relationship with EU law

In G 3/19 (OJ 2020, A119), concluded as to the legal nature of the EU Commission's notice of interpretation that it was not legally binding. The legally effective and binding interpretation of Union law, whether provisions of primary law, e.g. the treaties, or of secondary law, e.g. regulations and directives, lay within the exclusive competence of the CJEU. Irrespective of this, as an independent international organisation with its own autonomous legal order, the EPOrg was not directly bound by Union law. It was therefore all the more true that a legally non-binding notice on the interpretation of the EU Biotech Directive issued by the EU Commission in reaction to decisions of the Enlarged Board on the interpretation of a provision of the EPC, i.e. Art. 53(b) EPC, did not form part of EPC law.

1.4. Power to amend the RPBA under Article 23(4) EPC

The latest version of the Rules of Procedure of the Boards of Appeal (RPBA) in force at the time of publication of this edition of the Case Law book is the revised version which entered into force on 1 January 2020 (OJ 2019, A63; "revised version"). However, see Art. 25 RPBA 2020 for the transitional provisions. In this edition, the version previously in force is usually referred to as the RPBA 2007. As a rule, the boards of appeal refer to the revised version of the RPBA in their decisions explicitly as "RPBA 2020"; where "RPBA" alone appears in decisions issued recently but still before the RPBA 2020 entered into force, this implicitly refers to the RPBA 2007.

A draft of the new RPBA 2020 was drawn up in 2018 and circulated for user consultation before being adopted. Its adoption procedure differed from that for the earlier versions, a new one having been introduced on amendment of the Implementing Regulations to the EPC, in particular the deletion of R. 12 EPC and the insertion of R. 12a, R. 12b and R. 12c EPC, by decision CA/D 6/16 (OJ 2016, A100), which entered into force on 1 July 2016. Under this new procedure, it is now the Boards of Appeal Committee, a subsidiary body of the Administrative Council, that adopts the RPBA and the Rules of Procedure of the Enlarged Board of Appeal (RPEBA) (new R. 12c(2) EPC), while the Presidium advises the President of the Boards of Appeal on proposals for their amendment (new R. 12b(3)(c) EPC). This very general section and the case law reported in it still mainly refer to the RPBA 2007, or to previous versions. New sections have been included in this edition of the Case Law Book which deal with the changes introduced by the

RPBA 2020; see on this point chapters III.B.2.7.3, III.C.6.1.4.r), III.C.6.4, V.A.2.6.3.g), V.A.3.2.1, V.A.4, V.A.8.1.1, V.A.8.1.2, V.A.9.1.2, V.A.9.4.1.

Since entering into force on 1 January 2020, the RPBA 2020 have been amended once to insert a new Art. 15a on oral proceedings held by videoconference (Art. 15a RPBA 2020 entered into force on 1 April 2021); see also the new provisions inserted into R. 117 and 118 EPC (taking of evidence by videoconference – CA/D 12/20 of 15 December 2020 (OJ 2020, A132), which entered into force on 1 January 2021). For more on oral proceedings by videoconference, see G 1/21 of 16 July 2021.

The RPBA and the RPEBA are adopted in accordance with the Implementing Regulations and subject to the approval of the Administrative Council (Art. 23(4) EPC; see OJ 2007, 536 and OJ 2007, 303). Until RPBA 2007, according to R. 12(3) EPC the Presidium of the Boards of Appeal adopted the RPBA. And pursuant to R. 13(2) EPC the members of the Enlarged Board of Appeal adopted the RPEBA. In T 1400/11 the board stated that proceedings before the boards of appeal are governed by the RPBA in order to guarantee their judicial function.

In 1994 the Administrative Council adopted R. 71a EPC 1973 to the effect that a communication must be issued by the EPO at the same time as a summons to oral proceedings is issued (OJ 1995, 409). In contrast to this requirement, Art. 11(2) RPBA 1980 (Art. 15(1) RPBA 2007) leaves it to the discretion of the boards of appeal whether or not to send a communication with such a summons. In G 6/95 (OJ 1996, 649) the Enlarged Board held that R. 71a(1) EPC 1973 did not apply to the boards of appeal. If R. 71a(1) EPC 1973 were to be interpreted as applying to all departments of the EPO, including the boards of appeal, its effect would be directly contradictory to and in conflict with the effect of Art. 11(2) RPBA 1980, which was adopted pursuant to Art. 23(4) EPC 1973 as the emanation of the independence of the boards of appeal.

The RPBA 2007 can help in clarifying and interpreting the EPC but they cannot confer on the boards any powers that the EPC does not give them (T 1914/12, citing Art. 23 RPBA in this context).

1.5. Nature of the case law of the boards of appeal – no binding precedents

In R 14/11 the Enlarged Board stated that, like any other decisions of boards of appeal, its decisions in petition for review cases do not have the legal nature of creating a precedent in the sense that it would have to show in which respect a later decision differs from an earlier one in order for that later decision to be legally justified. Referring to R 11/08 the Enlarged Board stated that such differences are normal and that the usefulness of case law is not confined to similar or identical facts but lies in the principles or guidance (such as interpretation of legislative provisions) which, whether the facts are similar or not, can be extracted from earlier cases.

In G 3/19 (OJ 2020, A119) the Enlarged Board stated that a particular interpretation which has been given to a legal provision can never be taken as carved in stone, because the meaning of the provision may change or evolve over time. This aspect is intrinsic to the

ongoing development of the law by way of judicial decision-making, and, in the context of the jurisprudence of the boards of appeal, is reflected in Art. 21 RPBA 2020, which requires a board of appeal to make a referral to the Enlarged Board if it intends to deviate from an earlier decision or opinion of the Enlarged Board. Such a new referral would be pointless if there was no possibility, not even a theoretical one, that the Enlarged Board would revise its previous ruling on the point of law in question.

In T 844/18 the board was not persuaded by the appellants' submission of (part of) the non-binding preliminary opinion of the board in case T 239/16 (which did not find its way into the final decision) in support of their proposition that the EPO did not have competence or jurisdiction to determine who is entitled to the right of priority. Turning to the question of the interpretation of "any person" (Paris Convention), the board observed that there was no case law, either of the EPO or of national tribunals, that clearly and unambiguously adopted the interpretation proposed by the appellants. In general, the bar for **overturning long established case law and practice** should be a high one because of the disruptive effects a change may have. The board noted that the appellants were faced with over one hundred years of consistent case law and practice adopting the "all applicants" approach that they needed to show as incorrect. This was a considerable burden (point 53 of the Reasons). The bar to overturning long-established case law and practice should be very high because of the disruptive effects a change may have. The continuation of such long-standing and rationally based practices could be considered **an aspect of legal certainty** (point 86 of the Reasons).

1.6. Nature of national case law – not binding on the boards of appeal

Proceedings before the boards are independent and decisions of national courts are not binding in law (see R 21/09, which is very detailed on this point, and, as examples of decisions dealing with the relationship between national case law and board decisions, T 1904/12, T 885/02, T 202/13, T 231/13, T 488/16).

Case T 2220/14 recalled the relationship between national decisions and procedures before the boards of appeal. In the latter questions of patentability are to be decided solely in accordance with the EPC. As regards decisions made on patentability in contracting states to the EPC, these are not to be cited as if they were binding upon the boards of appeal, and claims should not be refused because their patentability cannot be upheld under the jurisdiction of one member state (T 452/91). Such considerations also apply to decisions of courts of non-member states such as the USA (point 16 of the Reasons).

According to J 14/19 (stay of proceedings for grant – time from when national proceedings pending), the question when proceedings became pending was to be assessed under the (national) procedural law of the state in question. Where the EPO was called on to apply foreign law (here: German law), it had to do so within the overall context of the foreign legal system, wherever possible. As an international organisation independent of state authorities and courts, it was not bound by the case law of national courts when interpreting the foreign law to be applied (on the lack of binding effect of the case law of the European Court of Justice (ECJ), see R 1/10, point 2 of the Reasons) but, if aware of such case law, in particular of the highest national courts, it should nevertheless consider and evaluate it

in coming to its decision. Since legal commentaries, by contrast, were not official publications and did not form part either of the law created by legislation or of the case law, they were not in themselves to be taken into account when applying foreign law. As regards the specific point of when proceedings were to be considered pending, the Legal Board further pointed out that, in the interests of a uniform European standard of interpretation, recourse could be had to the ECJ's case law on Art. 21 of the Brussels Convention, which not only matched Article 8 of the Protocol on Recognition in content but also predated it. In the context of that provision too, when proceedings were deemed to be pending was to be assessed for each court in line with its own national procedural law (ECJ Case 129/83).

2. Protocol on Recognition

In J 14/19 (stay of proceedings for grant – time from when national proceedings pending) the Legal Board noted that, in accordance with Art. 9(2) of the Protocol on Recognition, the jurisdiction of the (national) court whose decision on the right to the grant of a European patent was to be recognised, and the validity of such decision, could not be reviewed. Although primarily addressing the contracting states of the EPC, the Protocol on Recognition was an integral part of the EPC according to Art. 164(1) EPC and thus also binding on the EPO (see J 36/97 and, for the duty to recognise, R. 16(2) EPC). The EPO's scope for examining the full statement of the claim (for the purposes of applying R. 14(1) EPC and Art. 61(1) EPC) was also limited: substantive examination of a claim was the preserve of the national court under the Protocol on Recognition and the EPO had no authority in this regard (see G 3/92).

3. Extension agreements and ordinances

3.1. Legal nature

An extension agreement is an international treaty between the European Patent Organisation and an extension state which the President of the EPO is authorised by the Administrative Council to conclude with the Council's approval (Art. 33(4) EPC). Such an agreement serves the interests not only of applicants, by providing a simple route to patent protection in the extension states, but also those of the extension state, by enabling it to offer patent protection for its territory by extending the effects of European and Euro-PCT applications and patents (J 9/04; see also J 14/00, OJ 2002, 432).

In T 7/07 the board stated that the extension system largely corresponds to the EPC system operating in the EPC contracting states, except that it is not based on direct application of the EPC but on national law modelled on the EPC. The national law of the extension state governs the proceedings and the legal effects of the extension.

In J 9/04 the board noted that, as a bilateral ordinance, the Extension Ordinances essentially deal – exhaustively and strictly separately from the Convention – with matters pertaining to the integration of extended European applications and protective rights into the respective national law and their relationship to national applications and rights. This includes, in particular, the conferral of the same effects on extended applications and

patents as on national ones, the obligation to provide the national patent offices with a translation of the claims into the respective language, the national authentic text of extended applications and patents, their prior-art effect with respect to national applications and patents, and, finally, simultaneous protection. According to the board, none of these provisions give rise to any obligations on the part of the EPO. The EPO merely undertakes vis-à-vis the national patent authorities to assist with the administrative tasks associated with the extension of European patents, namely receiving requests for extension, levying extension fees and, after deducting an amount to cover its expenses, forwarding the remaining amount to the national patent offices. There is no right of recourse to the boards of appeal in respect of extensions of patent applications and patents to the extension states. Instead, the respective national jurisdiction is responsible. For example, Art. 6(2) of the Slovenian Law provides for appeals against decisions of the Slovenian Patent Office (see also J 2/05).

3.2. No jurisdiction of the boards of appeal

In J 22/10 the board stated that decisions taken by the EPO when carrying out its obligations under the co-operation agreements with certain states extending the protection conferred by European patents (extension agreements) were based not on the EPC itself but solely on the co-operation agreements between the European Patent Organisation and the extension states; it therefore rejected the respective appeals as inadmissible (see also J 14/00, OJ 2002, 432; J 19/00; J 9/04 of 1 March 2005; J 2/05; J 4/05). Any decisions based on such international treaties did not fall within the scope of the EPC and, as a result of this, were not subject to the jurisdiction of the boards of appeal. The extension agreements made it absolutely clear that references to provisions of the EPC were exhaustive and, thus, that there could be no corresponding application of other provisions, including those of Art. 106 EPC concerning the appeals procedure. In other words, the Legal Board of Appeal was not competent to decide a case that was governed solely by a "foreign" legal system.

In J 14/00 (OJ 2002, 432) the Legal Board of Appeal decided on the admissibility of an appeal directed against a letter issued by an EPO formalities officer applying the Extension Ordinance (OJ 1994, 75) associated with the Extension Agreement with the Republic of Slovenia. It held that, according to the exhaustive provision in Art. 106(1) EPC 1973, only those decisions of the EPO could be contested which were taken, within the framework of their duties under the EPC 1973, by the departments listed therein. This was not the case for decisions taken by the EPO when carrying out its obligations under the Extension Agreement. The Legal Board found that there was nothing in the structure or legal nature of the Extension Ordinance to support the appealability of the letter issued by an EPO formalities officer. The board held that the extension procedure generated legal effects exclusively on the basis of Slovenian national law. The Extension Ordinance thus made it absolutely clear that its references to provisions of the EPC 1973 were exhaustive and that there could be no application of other provisions, including those of Art. 106 EPC 1973 on the appeals procedure.

See also J 9/04 in the previous section for the role of the national jurisdictions.